

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF GEORGIA
GAINESVILLE DIVISION

CHRISTOPHER CARRELHA and KELSEY
CARRELHA,

Plaintiffs,

v.

MEB LOAN TRUST VIII, et al.,

Defendants.

CIVIL ACTION FILE
NO. 2:26-cv-00110-RWS-AWH

Judge Richard W. Story
Magistrate Judge Anna W. Howard

MOTION FOR LEAVE TO FILE A CORRECTED AMENDED COMPLAINT

ATTORNEY REVIEW NOTICE — READ BEFORE ANYTHING ELSE

This is a draft prepared for attorney review. **It has not been filed, served or sent, and it must not be until three things happen.**

First, the docket must be read. Whether an amended complaint was filed by the August 21, 2026 deadline set by Doc. 35, and what it contains, is unknown to everyone who prepared this. That single fact determines whether this motion is the right instrument or the wrong one.

Second, the relief must be selected. This draft is written for the case in which no compliant amended complaint is on file, or one is on file that carries the citation defects identified below. Section II sets out what to file instead in each of the other situations.

Third, the blanks must be completed from the docket — the service list above in particular. A certificate of service naming the wrong counsel is a certificate that proves nothing.

I. RELIEF REQUESTED

Plaintiffs respectfully move, under Federal Rule of Civil Procedure 15(a)(2), for leave to file the Corrected Amended Complaint submitted with this motion. The correction is directed to two matters: compliance with the pleading requirements of the Order of July 31, 2026 (Doc. 35), and the withdrawal of two legal citations that further research has shown do not support the propositions for which they were offered.

II. WHAT TO FILE IF THE DOCKET SAYS SOMETHING DIFFERENT

If no amended complaint was filed. This motion is the right instrument, and it should be accompanied by a short statement addressing excusable neglect under Rule 6(b)(1)(B), because the deadline has passed. That statement must be truthful about the reason, and the reason is not in this system's record.

If an amended complaint was filed and is compliant. File nothing on this footing. Instead consider a notice of supplemental authority or a short notice correcting the two citations identified in Section IV, which is a smaller and more credible step than a further amendment.

If an amended complaint was filed and carries the defects in Section IV. Correct them promptly and on the filer's own initiative. A party that identifies its own citation error and withdraws it is in a materially better position than one whose opponent finds it.

If a motion to dismiss is already pending. The response deadline governs. Check whether a motion to stay discovery was filed alongside it; on the one verified comparison available, *Caudell v. NewRez LLC*, No. 3:26-cv-00007 (M.D. Ga.), a stay was imposed and remained in place until the motion was resolved.

III. GROUNDS

A. Rule 15(a)(2) and the standard the Court applies

Rule 15(a)(2) directs that leave to amend be freely given when justice so requires. Plaintiffs do not seek to add claims, add parties, or expand the scope of this action. The proposed pleading is shorter than its predecessor and narrower in the relief it seeks.

Counsel note: the current text of Rule 15(a)(2) has not been retrieved from a primary source by the preparers of this draft, and must be read before this section is filed. See the citation-verification register, row CV-007.

B. Compliance with Doc. 35

The Order of July 31, 2026 identified the operative pleading as a type-one shotgun pleading and directed that an amended complaint be filed. The proposed Corrected Amended Complaint addresses that direction on its face: each count incorporates only the specific paragraphs it relies upon rather than all preceding paragraphs; each count is directed to named defendants rather than to defendants collectively; and paragraph numbering runs continuously through the document.

The Eleventh Circuit has made the stakes of a second non-compliant pleading explicit. In *Vibe Micro, Inc. v. Shabanets*, 878 F.3d 1291, 1309 (11th Cir. 2018), the court declined to allow a further repleading where the district court had "provided him with

specific instructions on how to properly do so" and "[h]e did not fix it," adding that it would not "adopt a rule requiring district courts to endure endless shotgun pleadings." Plaintiffs have read that instruction as it was written and have treated the terms of Doc. 35 as the specification to be met.

C. No prejudice

No scheduling order has issued. No discovery has been taken. The motions to dismiss at Docs. 4 and 5 were denied as moot with leave to renew, so Defendants retain every defence they had. Under Doc. 35, Defendants have fourteen days from the filing of an amended complaint to respond, and that period is unaffected.

IV. THE TWO CITATIONS WITHDRAWN, AND WHY

Plaintiffs bring these to the Court's attention rather than allowing them to be found.

First, *Ames v. JP Morgan Chase Bank, N.A.*, 298 Ga. 732 (2016), has been cited in materials prepared for this matter as reserving a borrower's standing to challenge an assignment that is void rather than voidable. It does not. Every reference to a void assignment in that opinion appears in footnote 8, which surveys the decisions of other jurisdictions and expressly aligns Georgia with those holding that plaintiff debtors "always lack standing to challenge an assignment when they have failed to prove an injury from the assignment." Plaintiffs withdraw any reliance on *Ames* for the contrary proposition.

Second, *Racette v. Bank of America, N.A.*, 318 Ga. App. 171 (2012), has been cited as direct authority for a borrower's attack on a void assignment. The opinion does

not address assignments at all. Plaintiffs withdraw that citation.

Plaintiffs note, in the interest of completeness, that *Racette* does hold that claims for wrongful foreclosure, breach of contract and emotional distress survived a motion to dismiss where published foreclosure advertisements misdescribed a senior lien by deed book and page, and where the borrower gave actual notice of the error. Plaintiffs do not presently plead such a claim, and raise the point only because the same case is being withdrawn on another ground.

V. WHAT THE PROPOSED PLEADING DOES NOT DO

It does not plead that the chain of title terminates before reaching Fannie Mae REMIC Trust 2024-91. That entity appears in materials prepared for this matter and has no connection to this loan; it is a defendant in a different case.

It does not plead a "show me the note" theory.

It does not assert that any authority is good law on the strength of a citator check, because no commercial citator was available to the preparers.

It does not characterise the effect of Standing Order 18-01 beyond the words used in Doc. 34, the standing order itself not having been retrieved.

VI. CONCLUSION

For these reasons Plaintiffs respectfully request leave to file the Corrected Amended Complaint submitted herewith.

ENCLOSURES TO BE ASSEMBLED BEFORE FILING

- Exhibit A — Corrected Amended Complaint, attached hereto

- Exhibit B — redline comparison against the operative pleading, once the operative pleading has been identified from the docket
- Exhibit C — proposed order

COUNSEL CHECKLIST BEFORE THIS LEAVES THE BUILDING

Confirm from the docket: what was filed and when; the current caption and judge initials; every counsel of record and their service method; whether a motion to dismiss or a motion to stay discovery is pending, and its response date.

Confirm in the proposed pleading: that no count incorporates all preceding paragraphs; that no count is directed at defendants collectively; that paragraph numbering is continuous; that every factual allegation has a source, a named witness, or is expressly pleaded on information and belief; that the *Ames* and *Racette* citations are gone; that Fannie Mae and REMIC Trust 2024-91 appear nowhere; that every exhibit referenced is attached.

Confirm in this motion: the Rule 15(a)(2) text as currently in force; whether Rule 6(b)(1)(B) needs addressing; the local rules on page limits and type; and that the certificate of service names the right people.

Respectfully submitted,

This ____ day of ____, 2026.

/s/ _____

Christopher Carrelha

Kelsey Carrelha

Plaintiffs, pro se

[address, telephone and email to be completed by the filer]

CERTIFICATE OF SERVICE

I certify that on the date below I served a copy of the foregoing upon all counsel of record by filing it with the Clerk of Court using the CM/ECF system, which will automatically send electronic notification to all attorneys of record, and, as to any party not served by CM/ECF, by first class United States mail, postage prepaid, addressed as follows.

[Counsel for Defendants — name, firm and address to be completed from the docket before filing]

[Counsel for any additional defendant — to be completed from the docket before filing]

/s/ _____

Christopher Carrelha

Kelsey Carrelha

Plaintiffs, pro se

[address, telephone and email to be completed by the filer]